

SICK LEAVE

All employee leaves and absences are subject to School Division policy and regulations. The Superintendent shall establish any regulations necessary for the application of the Division's policies regarding leaves and absences.

A. Sick Leave. The School Board has established a sick leave plan for full-time employees. This plan includes provisions for personal illness, family illness or death, other deaths, and other sick days, as defined in Section E.

B. Personnel Covered - Eligibility and Accumulation. A full-time employee under regular contract (probationary or continuing) or an assignment letter shall accumulate sick leave monthly during time the employee performs their assigned duties, including paid leave, under terms of the contract. The maximum allowance per year is:

1. 12 month position: 14 days
2. 11 month position: 14 days
3. 180-206 day position: 13 days

C. Prorated Days. When the length of a contract or assignment has been shortened (e.g., for a late start or early release), the number of sick leave days will be prorated. Employees who have resigned and overused their earned sick leave will be charged in their final paycheck and/or will be invoiced for any amounts not recouped.

D. Generally.

1. Sick leave for the contract or assignment year is accrued monthly, but credited (i.e. advanced) at the beginning of the contract year.

- a. An employee who leaves before the contract year has been completed must repay any unearned advanced sick leave that was used.

2. An employee who is unable because of illness to begin work when their current contract begins may be allowed to use all accumulated sick leave. The employee may elect not to use advanced leave and must notify the Leave & Disability Programs office or the Payroll office in writing if they do not wish to use advanced leave.

3. Unused sick leave may accumulate without a maximum limit. Sick leave balances are reported on the pay slip, with the current pay period reported on the next pay slip.

SICK LEAVE

4. A full-time employee transferring from another Virginia public school division or Loudoun County Government, or a former Loudoun County Public School (LCPS) employee returning directly to LCPS may be credited with sick leave accumulated, provided:

- a. That the employee has not received payment for such unused accumulated sick leave; and
- b. That in the case of an employee transferring from Loudoun County or another Virginia public school division, the entity provides documentation of available leave. The maximum transfer allowed is 90 days.

5. Employees and their supervisors are responsible for correctly recording leave usage.

E. Absences Covered.

1. Personal Illness. Personal illness is defined as incapacity to perform duties because of a medical condition or confinement. An employee on sick leave may be required after 3 consecutive days' absence to have verification from a licensed healthcare provider that they are unable to perform their duties because of a medical condition or confinement, or that they have a medical or dental check-up.

2. A physician's excuse may also be requested by the immediate supervisor for patterns of sick leave taken by the employee or suspected abuse of the sick leave policy.

3. Responsible use of sick leave is important to the effective and efficient operation of LCPS. When employees are absent, the ability of the Division to provide high quality instruction to its students is often compromised. The Division recognizes that illness is unavoidable and that there may be times when employees are unable to attend work; however, the Division expects employees to use their sick leave benefit with discretion.

4. Family Illness/Death. As used in this section, sick leave may be used for the illness or in connection with the death of a family member of an employee includes the relationships documented below:

SICK LEAVE

- parents
 - foster parents
 - legal guardian
 - stepparents
 - spouse
 - children (including stepchildren and foster children)
 - siblings
 - grandparents
 - great-grandparents
 - grandparents-in-law
 - parents-in-law
 - sisters-in-law
 - brothers-in-law
 - daughters-in-law
 - sons-in-law
 - grandchildren
 - aunts
 - uncles
 - nieces
 - nephews
 - any other relative not listed above living in the household of the employee
 - and anyone over whom the employee has “power of attorney.”
- a. Other Deaths. An employee will be allowed five (5) days for attendance at funerals not covered in the family relationships listed in Section E-4 above by utilizing their sick leave or annual leave. If leave is not available, the employee will be assessed Leave Without Pay in accordance with Policy 7722.

F. Sick Leave Used as Personal Leave. Any full-time employee who is not a 12-month employee may request the use of up to five (5) days of their sick leave per school year as personal leave during their normal contract period. Unless submitted for a religious observance, the personal leave request is subject to approval by the employee’s supervisor or designee. Personal leave may be limited when, in the judgment of the immediate supervisor, a qualified substitute cannot be secured.

G. Transfer of Leave. Upon separation from employment, except for retirement, employees are not entitled to payment for unused accumulated sick leave. The system will provide documentation of accumulated sick leave balances to another Virginia division within three years of separation from LCPS.

SICK LEAVE

H. Misuse of Sick Leave. Employees who make excessive use of sick leave and/or who demonstrate a suspicious pattern of using sick leave may be subject to disciplinary action. The misuse of sick leave may result in termination of employment.

[Former Policy 7-57] Adopted:

7/11/89

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Cross Refs: Policy [7722](#), Policy [7716](#)